

SECOND SEMESTER		
Law-517: Specific Contract – II Partnership Act 1933 LLP Act and Sale of Goods Act) of the Indian Contract Act 1872		FIRST PAPER

Unit – I

1. **Indemnity:** Definition, Elements.
2. **Guarantee:** Definition, Essential Elements, Difference between Indemnity & Guarantee, Extent of Surety's liability, Discharge & Not Discharge of Surety from liability, Rights of surety, Liability of Co-sureties.

Unit – II

1. **Bailment: (i)** Definition, Essential elements, (ii) Rights and Duties of Bailor & Bailee.
2. **Pledge (Pawn):** (i) Meaning, Essential Elements, (ii) Distinction between Bailment and Pledge.
3. **Agency:** (i) Definition of Agency, (ii) Kinds of Agent, (iii) Duties of Agent, (iv) Authority of Agent, (v) Creation of Agency (Kinds of Agency), (vi) Termination of Agency.

Unit – III

1. **Sale of Goods Act:** Meaning and Elements of Contract of Sale, Sale and Agreement to Sell, Difference between Sale and Agreement to sell.
2. **Caveat Emptor**, Condition, Warranty, Sale by Description and Sample.
3. Meaning of the maxim, '*Nemo Dat Quod Non Habet*' and its exceptions.

Unit – IV

1. Indian Partnership Act – Nature and definition of partnership. Kinds of Partners, Rights and duties of Partners, Doctrine of Holding out, Minors in partnership firm, Dissolution of Firm Effect of Non-Registration of firm.

Law-518: Law of Tort Including MV Accident and Consumer Protection Laws.		SECOND PAPER
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Unit – I

1. **Nature:** (i) Definition and Essential Elements of Tort, Scope of Law of Tort. (ii) Difference between Tort and Crime, Tort and Contract, Tort and Quasi-Contract, Tort and Trust, Fault and No Fault Liability. (iii) Whether it is Law of Torts or Law of Tort?
2. **Basic Maxims:** (i) *Ubi jus ibi remedium* (ii) *Injuria sine damno* (iii) *Damnum sine injuria*.
3. **General Defences:** (i) *Volenti non fit injuria*. (ii) Act of God (iii) Inevitable Accident (iv) Statutory Authority (v) Act of Necessity.
4. **Remoteness of Damage (Remoteness of Consequences)**

Unit – II

5. **Vicarious Liability:** (i) Master and Servant (ii) State Liability
6. **Strict Liability and Absolute Liability**
7. **Joint Tortfeasors.**
8. **Tort against Person:** (a) Assault (b) Battery (c) False Imprisonment
9. **Malicious Prosecution**

Unit – III

10. **Negligence:** Definition, Essential elements, *Res Ipsa Loquitur*, Last Opportunity rule, Product Liability due to negligence of manufacturer, Contributory Negligence.
11. **Nuisance:** Meaning, Elements, Kinds of Nuisance, Defences.
12. **Defamation:** Meaning, Essential Elements, Kinds and Defences.
13. **Torts against Property:** Trespass.

Unit – IV

14. **Consumer Protection Act, 2019:**
 - (a) **Definition:** (i) Consumer, Services Goods, Defect & Deficiency, Unfair Trade Practices, Restrictive Trade Practices, Manufacturer, Trader, Complaint, Consumer. (ii) Consumers Councils, Their role, (iii) Rights of Consumer.
 - (b) **Redressal Forums:** District Commission, State Commission and National Commission, Their Constitution and Powers.

- (c) Mediation.
- (d) Product Liability.

15. **Motor Vehicle Act** (with special reference to rights of victim of Motor Vehicle accident and liabilities of Insurance Company).

Law-519: Family Law – II (Hindu Law)		THIRD PAPER
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Unit – I

1. Outlines of Sources of Hindu Law and Schools of Hindu Law.
2. Law of Marriage under the Hindu Marriage Act, 1955.

Unit – II

1. Matrimonial Remedies with special Reference to Dissolution of marriage under the Hindu Marriage Act, 1955.

Unit – III

1. Maintenance under the Hindu Adoptions & Maintenance Act, 1956 and the Hindu Marriage Act, 1955.
2. Law of Adoption under the Hindu Adoptions and Maintenance Act, 1956 with special reference to the Doctrine of Relation back.
3. Outlines of the Law of Guardianship under the Hindu Minority and Guardianship Act, 1956.

Unit – IV

1. Succession of a Male Hindu and Female Hindu under the Hindu Succession Act, 1956 with special reference to Section 6 to Section 16.
2. Outlines of Hindu Joint Family and Position of Karta.
3. Outlines of Doctrine of Pious Obligation and Effect of Section 6 (4) of the Hindu Succession Act, 1956.

Law-520: Public International Law		FOURTH PAPER
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Paper-I (General Principles of International Law)

(100 Marks)

Unit-I

1. Nature and basis of International Law; Sources of International Law.
2. Subjects of International Law, Relation between International Law and Municipal Law.

Unit-II

1. Recognition, Nationality.
2. Extradition and Asylum.

Unit-III

1. Diplomatic Agents.
2. The Law of the sea, Territorial Sea, Exclusive Economic Zone, Continental Shelf.

Unit-IV

1. Diplomatic Agents.
2. Settlement of International Disputes.
3. Treaties: Meaning and Definition of Treaties, Formation of Treaties & Termination of Treaties.

Law-521: Constitutional Law – II		FIFTH PAPER
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UNIT – I

1. Meaning of State (Article 12)
2. Laws inconsistent with or in derogation of the Fundamental Rights- (Art. 13)
3. Right to Equality (Art. 14-18)
4. Freedom of speech and Expression (Art. 19(1)(a) & 19 (2))
5. Ex post facto law, Double Jeopardy, Protection against Self-Incrimination

UNIT – II

1. Right to Life and Personal Liberty (Art. 21)

2. Right to Religion (Art. 25-28)
3. Cultural and Educational Rights (Article 29-30),
4. Right to Constitutional Remedies (Art. 32)

UNIT – III

1. Directive Principles of State Policy
2. Relationship between Fundamental Rights & Directive Principles of State Policy
3. Fundamental duties

UNIT – IV

1. Emergency provisions- National & State Emergency and its implications
2. Amendment of the Constitution, Basic structure doctrine
3. Right to Property

References

1. Constitutional Law of India by M. P. Jain
2. Constitutional Law of India by V. N. Shukla
3. Constitutional Law of India by H. M. Seervani
4. Constitutional Law of India by D. D. Basu
5. Constitutional Law of India by J. N. Pandey

Law-522: International Organizations		SIXTH PAPER
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Unit-I

1. Concept of International Organisations, Origin and Development of International organizations, The League of Nations and The Charter of the United Nations, 1945.

Unit-II

1. The General Assembly.
2. The Security Council.
3. The Economic & Social Council.
4. The Secretariat.

Unit-III

1. The International Labour Organization.
2. The World Health Organization (WHO).
3. The United Nations Educational, Scientific and Cultural Organization (UNESCO).
4. The World Trade Organization (WTO).

Unit-IV

1. The International Court of Justice (Composition & Jurisdiction).
2. The International Criminal Court (Composition & Jurisdiction).